IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
COURT – 2

ITEM No.301

CP(CAA)/28(AHM)2023
in CA(CAA)/12(AHM)2023

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

GNRL Oil & Gas Ltd (Transferor Co.) — **.....Applicant**

GNRL Oil & Gas (I) Ltd (Transferee Co.) — **.....Respondent**

Order delivered on: 20/01/2026

Coram:
Mrs. Chitra Hankare, Hon'ble Member(J)
Dr. Velamur G Venkata Chalapathy, Hon'ble Member(T)

ORDER

This case is fixed before pronouncement of order.

The order is pronounced in open court vide separate sheet.

Sd/-

DR. V. G. VENKATA CHALAPATHY
MEMBER (TECHNICAL)

Sd/-

CHITRA HANKARE
MEMBER (JUDICIAL)

AD/SJ/AP

IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD (COURT - II)

CP (CAA) No. 28 (AHM) 2023
in
CA (CAA) No.12 of 2023

[Application under Sections 230-232 and with other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the Matter of

Scheme of Amalgamation of
M/s GNRL Oil & Gas Ltd.
(Non-petitioner/Transferor Company)
With
GNRL Oil & Gas (I) Private Limited
(Transferee Company)

Memo of Parties

M/s GNRL Oil & Gas Ltd.
(Foreign Company Registration No: F02068)
Non-Petitioner Transferor Company
A Company incorporated under
International Business Companies Act, 2000,
Bahamas (IBCA) having its registered office at
M B & H Corporate Services Ltd.,
Mareva House, 4 George Street,
Nassau, Bahamas and Registered address
of the place of business in India at
3rd Floor, "A" Wing, Gopal Palace,
Opp. Ocean Park, Near
Nehrunagar, Satellite Road,
Ahmedabad-380015,
Gujarat, India.

... Non-Petitioner
/ Transferor Company

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GNRL Oil & Gas (I) Private Limited
(CIN: U65999GJ2007PTC064693)
Petitioner Transferee Company
having its Registered Office at
3rd Floor, "A" Wing, Gopal Palace,
Opp. Ocean Park, Near
Nehrunagar, Satellite Road,
Ahmedabad-380015,
Gujarat, India.

... Applicant Company
/Transferee Company

Order Pronounced on: 20.01.2026

Coram:
MRS. CHITRA HANKARE
HON'BLE MEMBER (JUDICIAL)

MR. VELAMUR G VENKATA CHALAPATHY
HON'BLE MEMBER (TECHNICAL)

Appearance:

For the Applicant	:Ms. Dharmishta N. Raval, Adv.
For the Hydro Carbon	:Mr. Kunan Naik, Adv.
For the RD	:Mr. Shiv Pal Singh, Dy. Dir.
For Income Tax Dept	:Mr. Aman A Mir, Adv.

JUDGEMENT

1. The present joint Company Petition is filed by the Petitioner Company under Sections 230 to 232 read with other applicable provisions of the Companies Act, 2013 and Companies (Compromise, Arrangement and Amalgamations) Rules, 2016, seeking approval of the Scheme of Amalgamation (Cross-Border Merger) with effect from the Appointed Date, i.e. 01.04.2023.

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2. Transferor Company (Non-Petitioner) is a foreign company under the jurisdiction of Government of Bahamas. It is an unlisted Company. Its registered office is situated at Bahamas and registered address of the place of business is situated at Ahmedabad, Gujarat. It has project office in India for carrying out business of exploration and production of oil and gas. It is a wholly-owned subsidiary of Transferee Company. The Transferee Company is also an unlisted company.

3. It is submitted that the Reserve Bank of India has granted permission to the Transferor Company under Foreign-Exchange Management Act (FEMA) for establishing a Branch Office in India for the purpose of carrying out business of exploration and production of oil and gas.

4. It is represented that the registered office the petitioner company is situated within the territorial jurisdiction of Registrar of Companies, Ahmedabad, Gujarat, which is falling under the jurisdiction of this Tribunal.

5. The Board of Directors of both the petitioner and non-petitioner companies have approved the Scheme of Amalgamation through Board Resolutions dated 26.12.2022 passed in their respective Board Meetings.

6. Petitioner Company had filed a Company Application before this Tribunal being CA (CAA) No.12 of 2023. By an order dated 17.03.2023, this Tribunal had allowed the aforesaid company application. The meetings of Equity share holders in respect of Transferee Company was dispensed with in view of their consent affidavits. There are no secured creditors in the Company. This tribunal directed to convene the meetings of unsecured creditors of the Transferee Company. This Tribunal

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appointed Mr. Riddhesh Trivedi, Advocate as the Chairman of the aforesaid meeting and gave further directions to comply with various stipulations contained in the Order including filing of the Chairman's Report.

7. In response to the order dated 17.03.2023, the Chairman filed an affidavit dated 07.04.2023 along with proof of service regarding service of notice of meeting as well as publication of notice in newspapers on 30.03.2023. The petitioner company also filed affidavit dated 08.05.2023 along with proof of service of notice to statutory/regulatory authorities including Reserve Bank of India. *Vide* said Chairman's report dated 06.05.2023, it is seen that the requisite majority of the Unsecured Creditors of the Transferee Company have approved the proposed Scheme.

8. In compliance of order dated 13.07.2023, petitioner company has filed affidavit dated 31.08.2023, showing proof of publication of notice of hearing of this petition in 'Free Press Journal" in English and Gujarati translation thereof in "Lok Mitra" on 09.08.2023 and served the notices to the Regional Director, Registrar of Companies, Jurisdictional Income Tax Authority along with Principal Chief Commissioner of Income Tax, (for Transferor Company) and any other authority as applicable. The petitioner company also filed affidavit dated 08.05.2023 along with proof of service of notice to statutory/regulatory authorities including Reserve Bank of India.

9. In response to the notice served upon the Regional Director (RD), a representation/report dated 15.06.2023 was filed by

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the RD North-Western Region, along with the report of the Registrar of Companies (RoC) dated 20.04.2023. The petitioner companies have filed an affidavit dated 01.09.2023 in response to the reports of RD and RoC. Following are the observations of RD and ROC and response of the petitioner companies:

RD's Observations

a. Transferee Company to undertake compliance of all the conditions under Foreign Exchange Management (Cross Border Merger) Regulations, 2018.

> The petitioner companies undertakes to comply with the provisions under Foreign Exchange Management (Cross Border Merger) Regulations, 2018, to the extent applicable. It is further stated that the as per the provisions of RBI notification dated 20.03.2018, no prior approval of the RBI is required and the said notification has provisions has deemed approval of the RBI. The Transferee company has served notice upon the RBI, however, no reply or report is received from them. The Director and Company Secretary of the Transferee Company have submitted certificates with the provisions of Foreign Exchange Management (Cross Border Merger) Regulations, 2018.

b. Whether the Transferor Company/GNRL Oil & Gas Limited incorporated in the Commonwealth of the Bahamas on 29.11.1999 under the International Business Companies Act ("IBCA") has complied with all the provisions of applicable Act/Rules/Regulation of law of Commonwealth of the Bahamas.

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It is stated that pursuant to the provisions of IBCA 2000, a plan of merger of the Transferor company into Transferee Company has been prepared and the Board of Directors of the Transferor Company have passed resolution dated 26.12.2022 approving the said plan of merger. Also the written consent to the plan of merger has been provided by shareholders of the Transferor company. Further upon receipt and registration of approval of scheme of amalgamation by this Tribunal, the name of the Transferor company will be struck-off from the Registrar of Companies in Bahamas.

c. That, upon the scheme becoming effective, the Transferor company shall stand dissolved and the Transferor Company shall comply with actions under the laws of IBCA for its liquidation and the project office set up by the Transferor company in India shall stand closed.

The Transferor company undertakes that as required under the Companies Act, 2013, necessary applicable form will be filed after the sanction of the Scheme of Amalgamation with the Registrar of Companies for the closure of the Project Office.

d. The petitioner company to obtain licences, approvals and other permissions from the regulatory authority/Ministry of Petroleum & Natural Gas, Govt. of India.

The Transferor Company states that it has already

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intimated the Directorate of General Hydrocarbons, Ministry of Petroleum & Natural Gas regarding the Scheme of Amalgamation and further notice of scheme of amalgamation has also been served to Directorate of General Hydrocarbons. No separate approval/license/permission is required by the Transferor and Transferee Company and upon scheme becoming effective, the oil and gas exploration and production business will be carried out by the Transferee Company by following the provisions of PSCs.

The RD in his representation stated that according to RoC's report, vide Letter No.ROC-GJ/01/Sec.230-232/GNRL OIL/2023-24/225 dated 20.04.2023, there are no complaints against the petitioner company and also there is no complaint/representation against the Scheme of Amalgamation

RoC's observations

a. The RoC in its report submitted that the Transferor Company is a foreign company falling under the jurisdiction of the Government of Bahamas having place of business in India. The Transferee company is not registered as NBFC's. The Transferor company doesn't fall under the jurisdiction of this office. The Transferee company has filed Balance Sheet for the year 31.03.2020, 31.03.2021, 31.03.2022 as well as relevant Annual

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Return. It is further submitted that no show cause notice has been issued to Transferee company, no court case is pending, no technical scrutiny/inquiry is pending, as per the MCA portal record no complaint received and no inspection / investigation proceedings under Section 209A/206(5) of the Companies Act, 1956/2013 is pending against the Transferee company.

b. The RoC submitted that the petitioner company to preserve its books of accounts, papers and record and shall not be disposed of without prior permission of Central Government as per Section 239 of the Companies Act, 2013. It is further submitted that petitioner company to ensure statutory compliance of all applicable laws and also on sanctioning of the present Scheme, the Transferee Company shall not be absolved from any of its statutory liabilities, necessary stamp duty on transfer of property/assets, if any, to the respective authorities before implementation of the Scheme and to comply with the provisions of Section 232(5) of the Companies Act with respect to file certified copy of order sanctioning the Scheme with Registrar of Companies within 30 days from the date of passing order.

The petitioner company undertakes to comply with all statutory compliances of applicable laws and on sanctioning of the Scheme and the companies will not absolve from any of its statutory liabilities, in any manner. It is further undertaken by the Transferee company that the liabilities in respect of offences committed under Companies Act by the

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officers in default of the Transferor Company prior to merger, amalgamation or acquisition shall continue against itself after such merger, amalgamation or acquisition as per section 230 of the Companies Act, 2013. It is further submitted that there are no CIRP proceedings under IBC or winding up proceedings against either of the Petitioner Companies.

Response of Income Tax Department

10. In response to the notice of hearing served upon the Income Tax Department, it has filed reports dated 01.09.2023 and 03.04.2024 stating that in respect of the Transferee Company, there is a Demand of Rs.33,11,907/- [A.Y. 2014-15 pending demand is Rs.11,58,127/- and A.Y. 2015-16 pending demand is Rs.21,53,780/-]. Further, in respect of the Transferee Company an amount of Rs. 2,33,160/- has accrued for the assessment year 2009-10. Income Tax Department reserves its right to invoke the provisions of Income Tax Act in case there is non-compliance of the provisions of Section 2(1B), Section 2(19AA), Section 27A, Section 72AA of the Act and any other relevant provisions of the Act.

11. It stated that the objections raised by the department has been satisfactorily responded by the petitioner company. The petitioner Transferee Company has a filed its response through an affidavit dated 20.02.2024 stating that against the demand an appeal is filed before the Commissioner of Income-Tax and that for the assessment year 2015-16, the Commissioner of Income-Tax (Appeals) had allowed the appeal of the assesse

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resulting in deletion of the demand. A copy of the order passed by CIT(A) for the assessment year 2015-16 is placed on record. Hence, no demand is outstanding for the said assessment year. The petitioner transferee company provides that all the obligations and liabilities of the Transferor Company shall become the dues and liabilities of the Transferee company and further undertakes to pay the income tax in accordance with law and they will not be absolved of any income tax liability on account of the scheme being approved by the Tribunal.

Response of Directorate General of Hydrocarbons

12. In response to the notice of hearing served upon the respondent/The Directorate General of Hydrocarbons (DGH), it has filed its reply on 21.01.2025 to which the petitioner company had submitted an affidavit dated 15.02.2025. Thereafter, DGH filed an affidavit on 02.04.2025 asking the petitioner company to comply with the conditions of Article 29 of the Production Sharing Contract relating transfer of participating Interest on account of submission of certain required documents. Further, in compliance of order dated 15.05.2025, directing the petitioner company to convene a meeting with the DGH, a meeting through video conference was held with the DGH on 28.05.2025 and the petitioner company has filed an affidavit on 02.07.2025 undertaking to comply with the following, after the Scheme of Arrangement comes into effect-

i) That the petitioner company will provide bank guarantee for the fields for which the Transferor Company has provided bank guarantee.

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ii) That the Transferee company will submit the revised Financial Performance guarantee in favour of the Petitioner Transferee Company.

iii) The petitioner company will ensure that necessary consequential amendments to Production Sharing Contracts (PSCs) are made as may be required. Also undertakes to comply with requirement to enable it to act as a party to the PSCs as a result of the Scheme of arrangement coming into effect are carried out.

In response to the said affidavit, The Director General of the Hydrocarbons has filed an affidavit on 02.09.2025 submitting their no objection to the scheme of arrangement.

13. The Petitioner Company has also filed an affidavit dated 08.05.2023 stating that notice to Reserve Bank of India has been served on 12.04.2023. However, no response from Reserve Bank of India has been received. The Petitioner Company has filed an affidavit dated 26.03.2024 stating that as per the FEMA (Establishment in India of a branch office or a liaison office or a project office or any other place of business) Regulations 2016, dated 31.03.2016, amended from time to time, there is no requirement of obtaining approval of RBI for transfer of business undertaking of project office of Transferor Company pursuant to amalgamation. The Transferor/non-petitioner company undertakes to submit necessary documents with AD Bank as required under FEMA Regulations, 2016 for closure of the project office once the scheme of amalgamation is sanctioned by this Tribunal.

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14. This Tribunal vide order dated 06.05.2024, had sought certain clarifications from the petitioner company as well as to issue fresh notice to the RBI to seek letter of objection, if any. In compliance to the order dated 06.05.2024, the petitioner company has filed a clarifactory affidavit on 10.06.2024 providing the valuation report and asset liability statement of the transferor company/non-petitioner company as on 31.03.2024. Also the petitioner company has placed on record, the track report of the fresh notice issued upon the RBI on 10.05.2024 through RPAD.

15. Despite service of notice and publication, no representation from any other sectorial/regulatory authorities has been received.

16. Petitioner companies submitted that there are no proceedings/ investigation pending against both the petitioner company under Sections 210-217, 219, 220, 223, 224, 225, 226 & 227 of the Companies Act, 2013. It is further submitted that there are no winding up petition is pending against the petitioner company under the provisions of the Act. The Statutory Auditors have certified that the accounting treatment specified in the Scheme is in conformity with the accounting standards prescribed under Section 133 of the Companies Act.

17. We heard the Ld. Counsel for the petitioner company, counsel for Income Tax Department and perused reports of the Office of the Regional Director, OL and Registrar of Companies and also gone through the material available on record.

18. The counsel appearing for the petitioner company submitted that the petitioner company has complied with all statutory

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requirements as per the directions of this Tribunal and filed the necessary affidavits. The petitioner company also undertake to comply with statutory/regulatory requirements under the Companies Act, 2013 and the Rules made thereunder, as may be applicable.

19. The applicant has also complied with the order dated 4.12.2025 of this tribunal by filing an affidavit dated 22.12.2025 that there are no pending Insolvency proceedings against the captioned companies under IBC 2016.

20. On the basis of above facts and submissions made by the Learned Counsel representing the petitioner company, representative of the Regional Director, Counsel for the Income Tax Authorities, the Registrar of Companies and on perusal of the Scheme, it appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the petitioner company. No objections to the scheme have been produced on record by the petitioners. It also appears from the affidavits submitted that the applicant companies will comply with the FEMA regulations and as on date there are no violations, including the compliance to do the necessary filings before the authorities seems satisfactory. The Petitioner companies have also submitted undertaking that they will be complying with the provisions of the regulatory authorities of Government of Bahamas and file the necessary regulatory filings before both the authorities of Bahamas and Reserve Bank of India regarding the winding up procedure in compliance of FEMA regulations. We also note that sufficient time was given to reply to this petition by the RBI which has not filed any reply of objections, if any and hence the compliance affidavit submitted is taken as record to further consider the scheme.

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21. We are of the considered view that the proposed Scheme of Amalgamation is *bona fide* and in the interest of the shareholders and creditors. In the result, Company Petition No. CP (CAA)/28 (AHM) 2023 in CA (CAA)/12 (AHM) 2023 can be allowed. The Scheme envisages Amalgamation of GNRL Oil & Gas Ltd. (Non-petitioner/Transferor Company) into GNRL Oil & Gas (I) Private Limited (Transferee Company) and their respective shareholders and creditors.

22. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

23. While approving the Scheme as above, based on the declaration and reply submitted we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including Income Tax, GST, etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any of the regulatory authorities and with any other requirement which may be specifically required under any law.

24. Therefore, this Tribunal orders as under;

ORDER

I. Company Petition i.e. CP (CAA) 28 of 2023 in CA (CAA) 12 of 2023, is allowed.

II. The Scheme of Amalgamation is hereby sanctioned and it is declared that the same shall be binding on the Petitioner

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Company and their Shareholders and Creditors and all concerned under the Scheme.

III. The Appointed Date for the Scheme shall be 01.04.2023.

IV. The Petitioner Company is directed to comply with the statutory filing requirements sought by the RD/RoC in their report/representation. This would include complying with any provisions that may be needed on account sanction of this scheme to any other regulatory authorities. The Petitioner company will ensure that there is no charge created before sanction of the scheme/if any to be accordingly deleted if there are no liabilities with any creditors, or any other, irrespective of approval of the scheme and submit the necessary clarifications seeking deletion by the ROC through appropriate creditors who have created charge if any. Also the transferee company would ensure that no external liability arises in violation of FEMA regulations on approval of the scheme for which the necessary compliance is deemed to have been provided for approval of the scheme by the petitioners.

V. Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Amalgamation ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Department shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Amalgamation under Sections 230-232 of the Companies Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if

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any against the petitioner companies in complying with any of the provisions of Income Tax and they are liable to be proceeded against at time before or after sanction of the scheme that is approved.

VI. It is declared that the Transferor/Non-petitioner Company shall be dissolved without winding up on compliance of this order.

VII. All the property right and powers of the Transferor/non-petitioner Company and all the other property, rights and powers of the Transferor/non-petitioner Company be transferred as per scheme without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, be transferred to and vested in the Transferee Company for all the estates and interest of the Transferor/non-petitioner Company therein.

VIII. All the liabilities and duties of the Transferor/non-petitioner Company be transferred as per scheme to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013 become the liabilities and duties of the Transferee Company.

IX. All workers/employees of the Transferor/non-petitioner Company in India shall be deemed to have become the workers/employees of the Transferee Company as per scheme with effect from the Appointed Date without any break, discontinuance or interruption in their service and on the basis of continuity of service, and the terms and conditions of their employment with the Transferee Company shall not be less favourable than those applicable to them with reference to the Transferor/non-petitioner Company as on the Effective Date.

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X. All proceedings, if any, now pending against the Transferor/non-petitioner Company are continued by or against the Transferee Company. The transferee company will complete the process of closure of the Liaison Office/Project Office in India (which is documented to have been shifted from New Delhi to Ahmedabad before filing this application) within the prescribed period under FEMA not exceeding 6 months from the date of this order, including compliance to the other regulatory requirements of the transferor company under FEMA.

XI. The Petitioner Companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of the Transferor/non-petitioner Company shall stand transferred to the Transferee Company as per scheme and the Registrar of Companies shall place all documents relating to the Transferor Company to the file kept by him in relation to the Transferee Company and the files relating to the said companies shall be treated accordingly.

XII. All concerned Authorities to act on copy of this order along with the Scheme authenticated. Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme.

XIII. The Petitioner Company is directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

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XIV. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned the Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act. A physical copy also to be sent to the other applicable regulator of its overseas office(transferor company), as required. No reliefs or regulatory concessions are granted to comply with the overseas regulators regulatory compliance.

XV. The legal fees and expenses of the office of the Regional Director are quantified at Rs.50,000- in respect of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Transferee Company.

XVI. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

Accordingly, Company Petition i.e. C.P. (C.A.A.) / 28 (AHM) of 2023 in C.A.(C.A.A.)/12 of 2023, is disposed of.

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DR. V. G. VENKATA CHALAPATHY
MEMBER (TECHNICAL)

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CHITRA HANKARE
MEMBER (JUDICIAL)

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